

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #15	CCRB Case #: 202001985	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/28/2020 8:54 PM	Location of Incident: Avenue H & E 56th St, Brooklyn, NY 11234	18 Mo. SOL 4/14/2022	Precinct: 63		
Date/Time CV Reported Sat, 02/29/2020 11:15 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/09/2020 9:15 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Cioffi	24252	963217	063 PCT
2. PO Giancarlo Proietti	23706	963218	063 PCT
3. PO Jonathon Perez	19449	964209	063 PCT
4. PO Anthony Caravana	04908	963432	063 PCT
5. LT Mariana Zakhary	00000	945447	FAM ASSIST

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Katherine Wirth	04895	963811	063 PCT
2. POF Cynthia Alonzo	00152	963370	063 PCT
3. LT George Taylor	00000	946312	120 PCT
4. SGT Christopher Muller	04155	925795	063 PCT
5. PO John Brennan	12838	960275	063 PCT
6. PO Daniel Diaz	08295	960457	063 PCT
7. PO Max Lindon	23513	963122	063 DET

Officer(s)	Allegation	Investigator Recommendation
A . PO Giancarlo Proietti	Abuse: Police Officer Giancarlo Proietti seized § 87(2)(b) property.	A . Exonerated
B . POM Michael Cioffi	Abuse: Police Officer Michael Cioffi seized § 87(2)(b) property.	B . Exonerated
C . PO Giancarlo Proietti	Abuse: Police Officer Giancarlo Proietti seized § 87(2)(b) property.	C . Unfounded
D . PO Giancarlo Proietti	Force: Police Officer Giancarlo Proietti used physical force against § 87(2)(b)	D . Substantiated
E . PO Giancarlo Proietti	Force: Police Officer Giancarlo Proietti used a chokehold against § 87(2)(b)	E . Unfounded
F . PO Giancarlo Proietti	Force: Police Officer Giancarlo Proietti restricted § 87(2)(b) breathing.	F . Unfounded
G . PO Giancarlo Proietti	Discourtesy: Police Officer Giancarlo Proietti spoke discourteously to § 87(2)(b)	G . Exonerated

Officer(s)	Allegation	Investigator Recommendation
H . POM Michael Cioffi	Discourtesy: Police Officer Michael Cioffi spoke discourteously to § 87(2)(b)	H . Substantiated
I . PO Anthony Caravana	Discourtesy: Police Officer Anthony Caravana spoke discourteously to § 87(2)(b)	I . Substantiated
J . PO Giancarlo Proietti	Abuse: Police Officer Giancarlo Proietti did not obtain medical treatment for § 87(2)(b)	J . Substantiated
K . PO Jonathon Perez	Abuse: Police Officer Jonathon Perez did not obtain medical treatment for § 87(2)(b)	K . Substantiated
L . PO Anthony Caravana	Abuse: Police Officer Anthony Caravana did not obtain medical treatment for § 87(2)(b)	L . Substantiated
M . LT Mariana Zakhary	Abuse: Lieutenant Mariana Zakhary did not obtain medical treatment for § 87(2)(b)	M . Substantiated
N . PO Giancarlo Proietti	Abuse: Police Officer Giancarlo Proietti searched the vehicle in which § 87(2)(b) was an occupant.	N . Unsubstantiated
O . POM Michael Cioffi	Abuse: Police Officer Michael Cioffi searched the vehicle in which § 87(2)(b) was an occupant.	O . Unsubstantiated

Case Summary

On February 29, 2020, § 87(2)(b) filed this complaint with NYPD IAB, generating IAB Log #§ 87(2)(b). The CCRB received this complaint on March 9, 2020.

On February 28, 2020, at approximately 8:54 PM, § 87(2)(b) double parked his red 2001 Saturn 200 four door sedan on the northeast corner of Avenue H and East 56 Street in Brooklyn. § 87(2)(b) was the driver and his father, § 87(2)(b) sat in the front passenger seat. Immediately after, Police Officer Michael Cioffi and Police Officer Giancarlo Proietti of the 63rd Precinct approached § 87(2)(b) and § 87(2)(b) in an unmarked vehicle. PO Cioffi approached § 87(2)(b) and asked for his driver's license, registration, and insurance. § 87(2)(b) told PO Cioffi that there was an open bench warrant for him. PO Cioffi instructed § 87(2)(b) to exit his vehicle. § 87(2)(b) complied, and PO Cioffi placed him in handcuffs. § 87(2)(b) told § 87(2)(b) to take the key and park the vehicle for him. PO Proietti and PO Cioffi told § 87(2)(b) that he cannot leave with the vehicle (**Allegations A and B: Abuse of Authority, exonerated**). PO Proietti instructed § 87(2)(b) to exit the vehicle his and to leave all belongings inside (**Allegation C: Abuse of Authority, unfounded**). § 87(2)(b) asked PO Proietti to let his take his belonging. PO Proietti refused. At this time, § 87(2)(b) removed § 87(2)(b) vehicle key from the ignition. PO Proietti pulled § 87(2)(b) out of the vehicle and to the ground (**Allegation D: Force, substantiated**). PO Proietti placed his knee on § 87(2)(b) neck (**Allegation E and F: Force, unfounded**). PO Proietti use variations of the phrase, "Give me your other fucking arm", and "Cut the shit" (**Allegation G: Discourtesy, exonerated**). § 87(2)(b) asked PO Proietti to call an ambulance for him. PO Proietti refused (**Allegation J: Abuse of Authority, substantiated**). At this time, Police Officer Jonathon Perez, Police Officer Anthony Caravana, Police Officer Cynthia Alonzo, Police Officer John Brennan, Police Officer Daniel Diaz, Police Officer Max Lindon, Police Officer Katherine Wirth, Sergeant George Taylor, Sergeant Christopher Muller of the 63rd Precinct responded to the location. PO Proietti placed § 87(2)(b) in handcuffed. PO Cioffi picked § 87(2)(b) off the ground and said, "You wanna make a scene, hands off motherfucker, fuck is wrong". PO Cioffi told officers on scene, "Put him in the fucking cage" (**Allegation H: Discourtesy, substantiated**). PO Cioffi escorted § 87(2)(b) to PO Perez and PO Caravana. PO Caravana told § 87(2)(b) "You kick either of us, you gonna have a fuck fucking problem, alright." (**Allegation I: Discourtesy, substantiated**). PO Perez and PO Caravana transported § 87(2)(b) to the 63rd Precinct station house in their patrol vehicle. § 87(2)(b) requested medical attention from PO Perez and PO Caravana. The officers did not provide § 87(2)(b) with medical aid (**Allegation K and L: Abuse of Authority, substantiated**). At the 63rd Precinct station house, PO Perez and PO Caravana processed § 87(2)(b) at the front desk. LT Zakhary was the desk officer. § 87(2)(b) requested medical attention from LT Zakhary. LT Zakhary did not provide aid for § 87(2)(b) (**Allegation M: Abuse of Authority, substantiated**). § 87(2)(b) and § 87(2)(b) were both lodged. PO Proietti and PO Cioffi conducted an inventory search of § 87(2)(b) vehicle (**Allegation N and O: Abuse of Authority, exonerated**).

§ 87(2)(b) and § 87(2)(b) were both arrested as of result of this incident. § 87(2)(b) § 87(2)(b) went to § 87(2)(b) Hospital. § 87(2)(b) sustain unspecified scabs and bruising. § 87(2)(b) § 87(2)(a) – PHL 18(6)

Findings and Recommendations

Allegation(A): Police Officer Giancarlo Proietti seized § 87(2)(b) property.

Allegation (B): Police Officer Michael Cioffi seized § 87(2)(b) property.

Allegation (C): Police Officer Giancarlo Proietti seized § 87(2)(b) property.

It is undisputed that PO Cioffi told § 87(2)(b) that § 87(2)(b) could not drive his vehicle for him. It remains disputed whether officer PO Proietti and PO Cioffi told § 87(2)(b) that he cannot remove any of his belongings from the inside of the vehicle.

§ 87(2)(b) (Board Review 1) and § 87(2)(b) (Board Review 2) CCRB statements were mostly consistent. Approximately one to two minutes after § 87(2)(b) doubled parked on the street, a black unmarked police vehicle approached § 87(2)(b) vehicle from the back with turret lights on. PO Proietti exited the unmarked vehicle and approached § 87(2)(b) at front the passenger side, and PO Cioffi approached § 87(2)(b) at the driver side. PO Cioffi instructed § 87(2)(b) to exit. § 87(2)(b) complied, and PO Cioffi told him that he had an open warrant. PO Cioffi escorted § 87(2)(b) to the rear of his vehicle. § 87(2)(b) stated that § 87(2)(b) had not commit any traffic violations prior to the incident. After § 87(2)(b) gave his driver's license to PO Cioffi, he told the officer that his vehicle was newly purchased and was not registered. § 87(2)(b) also told PO Cioffi that he has an open bench warrant. § 87(2)(b) told § 87(2)(b) to lock and park his vehicle for him. PO Proietti told § 87(2)(b) that § 87(2)(b) cannot take his vehicle. PO Proietti was the front passenger side door and told § 87(2)(b) to hand him the vehicle keys. § 87(2)(b) was seated and asked PO Proietti why the vehicle was being impounded. PO Proietti did not answer. § 87(2)(b) reached for his coat, cellphone and medication located in the back passenger seat. § 87(2)(b) intended to take his belongings out and exit the vehicle. PO Cioffi told PO Proietti to not let § 87(2)(b) take any of his belongings. § 87(2)(b) asked the police officers why he cannot take his things out. § 87(2)(b) removed the vehicle keys from the ignition and held it in his hand. After PO Proietti escorted § 87(2)(b) to the rear of the unmarked vehicle, he asked PO Proietti to let § 87(2)(b) to park his vehicle for him. PO Proietti told § 87(2)(b) that he cannot, and that his vehicle will be transported to the 63rd Precinct station house for pick up.

PO Proietti stated that (Board Review 8) after he handcuffed § 87(2)(b) he and PO Cioffi informed § 87(2)(b) that his vehicle will be taken back to the 63rd Precinct station house. § 87(2)(b) told § 87(2)(b) to not let the officers take his vehicle. PO Proietti stated that § 87(2)(b) was not allowed to drive the vehicle because it was neither registered or insured and that the owner was not yet determined. § 87(2)(b) had personal belongings inside his vehicle and if it went missing, PO Proietti would be accountable for it. PO Proietti wanted to take the vehicle back to the station house for safe keeping.

PO Cioffi stated that (Board Review 7) he asked § 87(2)(b) for his driver's license, registration, and insurance upon approach. § 87(2)(b) provided PO Cioffi with the requested documents. PO Cioffi looked up § 87(2)(b) driver's license and license plate in the database on his department cellphone. At this time, PO Cioffi discovered that § 87(2)(b) had an open warrant.

According to § 87(2)(b) Arrest Report # § 87(2)(b) (Board Review 5), he violated New York Vehicle Traffic Law Section 512, for operating a vehicle with a suspended registration. § 87(2)(b) vehicle was also not insured.

According to PO Proietti's BWC video footage (Board Review 4), at internal timestamp 01:46:30, PO Proietti instructs § 87(2)(b) to exit his vehicle. At internal timestamp 01:46:47, § 87(2)(b) steps out of the vehicle with paper bags in his hands. § 87(2)(b) returns to the vehicle and reaches the back seat with his arm. PO Proietti asks § 87(2)(b) if he is getting his cellphone. § 87(2)(b) says yes. PO Proietti tells § 87(2)(b) to take his belonging and to leave, twice. At internal timestamp 01:47:09, § 87(2)(b) returns to his vehicle and tells PO

Porette that he is taking his belonging. PO Proietti tells § 87(2)(b) that he will retrieve his things for him. § 87(2)(b) tells PO Proietti that he will do it himself. At internal timestamp 01:47:15, § 87(2)(b) retrieves a bag from the back passenger seat. PO Proietti waits for § 87(2)(b) and tells him that he needs to exit.

According to PO Cioffi's BWC video footage (Board Review 4), at internal timestamp 01:43:56, PO Cioffi asks for § 87(2)(b) driver's license, insurance and registration. At internal timestamp, 01:44:22, § 87(2)(b) hands PO Cioffi his driver's license and registration. § 87(2)(b) tells PO Cioffi he did not have vehicle insurance for two months. At internal timestamp, 01:45:58, § 87(2)(b) Tells PO Cioffi that he has no insurance, again.

New York Vehicle Traffic Law Section 512 (Board Review 12) established that no vehicle should be operated while registration is suspended or revoked.

According to the BWC video footage, when § 87(2)(b) handed PO Cioffi his driver's license and registration, he told PO Cioffi that his vehicle did not have vehicle insurance. § 87(2)(g)

It is therefore recommended that **Allegation A** and **B** be closed as *exonerated*.

According to PO Porette's BWC video footage, prior to § 87(2)(b) arrest, officers allowed § 87(2)(b) to retrieve his personal belongings from the back seat area of § 87(2)(b) vehicle, § 87(2)(g)

Is it therefore recommended that **Allegation C** be closed as *unfounded*.

Allegation (D): Police Officer Giancarlo Proietti used physical force against § 87(2)(b)

Allegation (E): Police Officer Giancarlo Proietti used a chokehold against § 87(2)(b)

Allegation (F): Police Officer Giancarlo Proietti restricted § 87(2)(b) breathing.

It is undisputed that after PO Proietti used force to restrain and to arrest § 87(2)(b)

§ 87(2)(b) CCRB (Board Review 1) stated that when he removed the keys from the vehicle's ignition, PO Proietti grabbed § 87(2)(b) by the waist and shoulders and dragged him out of the front passenger seat. § 87(2)(b) laid stomach-side down on the pavement. PO Proietti positions himself on top of § 87(2)(b) PO Proietti placed a knee on § 87(2)(b) neck. § 87(2)(b) held the vehicle key in his left hand. § 87(2)(b) left arm was unrestrained and was positioned straight out. § 87(2)(b) stated that he had difficulty breathing but it was not known if § 87(2)(b) communicated it to PO Proietti. PO Proietti held § 87(2)(b) on the ground for approximately ten to fifteen minutes before he placed him in handcuffs.

§ 87(2)(b) (Board Review 2) stated that after he was handcuffed and placed inside the unmarked vehicle, he observed § 87(2)(b) remove the vehicle keys from the ignition. At this time, PO Proietti pulled § 87(2)(b) out of the front passenger seat. § 87(2)(b) fell to the ground with his face down. PO Proietti placed his knees on § 87(2)(b) back. PO Proietti grabbed the key in § 87(2)(b) hand. § 87(2)(b) did not observe interaction between § 87(2)(b) and PO Proietti beyond this point, while they were on the ground.

PO Proietti stated that (Board Review 8) he allowed § 87(2)(b) to remove his personal belongings from the vehicle, upon his request. PO Proietti stood by the passenger side door and

waited. § 87(2)(b) remained seated in the vehicle and at this time, removed the vehicle keys from the center console. PO Proietti grabbed § 87(2)(b) wrist and he pulled away. PO Proietti and § 87(2)(b) both fell to the ground by the passenger side door in the process. § 87(2)(b) was in a prone position with his one arm under him. PO Proietti positioned himself directly over § 87(2)(b) and held on to his right wrist. PO Proietti stated that his buttocks might have been on top of the § 87(2)(b) buttocks and that he was in a mount position. PO Proietti placed his own body weight on his knees which contacted the ground. § 87(2)(b) was inside in the space between PO Proietti's legs. PO Proietti instructed § 87(2)(b) to give him his left arm multiple times and each time, § 87(2)(b) refused. § 87(2)(b) resisted by flailing and pulling his body away from PO Proietti. Proietti told § 87(2)(b) to stop resisting. § 87(2)(b) told PO Proietti that he wanted an ambulance. PO Proietti placed handcuffs on § 87(2)(b) by grabbing and "outmuscling" § 87(2)(b) left arm.

PO Cioffi stated that he observed (Board Review 7), PO Proietti pulling § 87(2)(b) out of the vehicle, but he did not observe the exact physical contact PO Proietti made. PO Proietti observed § 87(2)(b) laying on the ground with his stomach-side down. PO Proietti was behind § 87(2)(b). PO Proietti pulled § 87(2)(b) hands from underneath his body to place him in handcuffs. § 87(2)(b) kicked the passenger side window from the inside of the unmarked police vehicle and told PO Cioffi that he would "violate" him. PO Cioffi remained at the back of the unmarked vehicle to make sure § 87(2)(b) did not break the window and flee. PO Proietti handcuffed § 87(2)(b) and PO Cioffi went over to pick him up from the ground.

Photographs submitted by § 87(2)(b) (Board Review 21) showed bruising and scabbing on his hand and fingers.

According to TRI Report § 87(2)(b) (Board Review 20), PO Proietti stated that he used a forcible take down to overcome § 87(2)(b) active resistance.

According to PO Proietti's BWC video footage (Board Review 4), at internal timestamp 01:47:14, § 87(2)(b) removes the vehicle keys from the ignition. PO Proietti asks § 87(2)(b) to give him the vehicle keys. PO Proietti tells § 87(2)(b) to exit his vehicle. At internal timestamp 01:47:28, PO Proietti grabs § 87(2)(b) left shoulder and drags him out of the vehicle. § 87(2)(b) lays on the ground with his face down. PO Proietti holds § 87(2)(b) right arm. At internal timestamp 01:47:56, § 87(2)(b) asks PO Proietti what he is doing. At 01:48:02, § 87(2)(b) tells PO Proietti that he is hurting his arm. PO Proietti tells § 87(2)(b) to give him his right arm. § 87(2)(b) tells § 87(2)(b) to stop bending his arm. § 87(2)(b) lies on his stomach-side. At 01:47:42, PO Proietti continues to hold § 87(2)(b) right arm backward, and § 87(2)(b) lays on top of his left arm. PO Proietti instructs § 87(2)(b) to give him his left arm multiple times, § 87(2)(b) tells the officer that he can't move his arm. At internal timestamp 01:48:05, PO Proietti tells § 87(2)(b) to give him his left arm. § 87(2)(b) tells § 87(2)(b) to stop bending his right arm. At internal timestamp 01:48:15, PO Proietti reaches under § 87(2)(b) torso to get grab his left arm.

NYPD Patrol guide Procedure 221-01 (Board Review 19), states that force may be used when it is reasonable to ensure the safety of a member of service or third person, or otherwise protect life, or when it reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department policy

§ 87(2)(g)

§ 87(2)(g)

From the BWC video footage, § 87(2)(b) was seated inside the vehicle and was about to exit with his belongings. Although § 87(2)(b) removed the vehicle keys from the ignition against PO Proietti's instructions, he did not make any indication, either verbal or physical, to flee or to fight PO Proietti. The BWC video footage, PO Proietti instructed § 87(2)(b) to exit the vehicle, and to hand him the vehicle keys, § 87(2)(g)

PO Poretti held onto one of § 87(2)(b) hands and he pulled him out of the vehicle immediately after issuing him instructions. § 87(2)(g)

It is therefore recommended that **Allegation D** be closed as *substantiated*.

According to PO Cioffi's BWC video foot at internal timestamp 01:47:48, PO Proietti's knees are both on the ground and § 87(2)(b) is in between PO Proietti's legs.

BWC video footages obtained by the investigation contradicted § 87(2)(b) and § 87(2)(b) account of the incident. The BWC video footage showed that PO Proietti's knees made two point contact on the ground, and not on § 87(2)(b) back or neck § 87(2)(g) § 87(2)(g)

It is therefore recommended that **Allegation E** and **F** be closed as *unfounded*.

Allegation (G): Police Officer Giancarlo Proietti spoke discourteously to § 87(2)(b)

Allegation (H): Police Officer Michael Cioffi spoke discourteously to § 87(2)(b)

Allegation (I): Police Officer Anthony Caravana spoke discourteously to § 87(2)(b)

According to CCRB statements from § 87(2)(b) (Board Review 1) and § 87(2)(b) (Board Review 2), they did not allege that officers spoke discourteously to § 87(2)(b)

PO Proietti (Board Review 8) acknowledged that he said, "Give me your other fucking arm" and "Cut the shit" to § 87(2)(b) PO Proietti stated that the reason he used profanity was because his emotions were heightened during the incident.

PO Cioffi (Board Review 7) stated that he stated that it was possible that he used profanity when speaking with § 87(2)(b) because the incident was a hectic situation. PO Cioffi was presented with is BWC video footage. PO Cioffi acknowledge that he told § 87(2)(b) "You wanna make a scene, hands off motherfucker, fuck is wrong", and "Put him in the fucking cage". PO Cioffi stated that he used profanity due to the "heat of the moment" and for no additional reasons.

PO Caravana (Board Review 10) was presented with PO Perez's BWC video footage at internal timestamp 01:49:38, in the video, PO Caravana identified himself in the video footage. PO Caravana was shown footage of him telling § 87(2)(b) "You kick either of us you're going to have a big fucking problem, alright?". PO Caravana stated that he used profanity when addressing § 87(2)(b) because the incident was a "high intensity situation" where § 87(2)(b) acted in a combative manner by tensing his body and tried to move away from officers.

According to PO Proietti's BWC video footage (Board Review 4), at internal timestamp 01:48:02, § 87(2)(b) tells PO Proietti that he is hurting his arm. PO Proietti tells § 87(2)(b) "Give me your other fucking arm". § 87(2)(b) tells § 87(2)(b) to stop bending his arm. PO Proietti tells § 87(2)(b) "Give me your other fucking arm". At internal timestamp 01:48:15, PO Proietti tells § 87(2)(b) "Stop fucking resisting". At internal timestamp 01:49:22, PO Proietti tells § 87(2)(b) to "Cut the shit."

According to PO Cioffi's BWC video footage (Board Review 4), at internal timestamp 01:48:11, § 87(2)(b) tells PO Cioffi, "Watch when I'm out. Watch when I'm out. Watch this." At internal timestamp 01:48:31, § 87(2)(b) kicks the unmarked vehicle back passenger door three times from the inside. PO Cioffi picks up § 87(2)(b) who is in handcuffs, off the ground and says "You wanna make a scene, hands off motherfucker, fuck is wrong". At 01:48:50 PO Cioffi says, "Put him in the fucking cage."

According to PO Perez's BWC video footage (Board Review 4), at internal timestamp 01:49:38, PO Perez holds § 87(2)(b) against the hood of an unmarked vehicle. § 87(2)(b) yells at PO Perez and PO Caravana that he has his belonging in § 87(2)(b) vehicle. PO Caravana tells § 87(2)(b) "You kick either of us, you gonna have a fuck fucking problem, alright."

NYPD Patrol Guide Procedure 200-02 (Board Review 14), states that the police department must maintain a higher standard of integrity than is generally expected of others because so much is expected of them. The police department must value human life, respect the dignity of each individual, and render their services with courtesy and civility.

DCT Case No. 2015-15012 (Board Review 13) states that "officers are to behave professionally and respectfully towards members of the public and avoid the use of discourteous language; however, officers' use of profanities during stressful street encounters do not constitute misconduct."

§ 87(2)(g)
§ 87(2)(b) actively hid one arm under his body so that PO Proietti would not be able apply both handcuffs. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as *exonerated*.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) the BWC video did not show him moving erratically or attempting to flee. § 87(2)(b) did not pose an immediate physical threat to the officers. Further, PO Perez did not have trouble restraining § 87(2)(b) and did so without any assistance from PO Caravan. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

It is therefore recommended that **Allegations H and I** be closed as *substantiated*.

Allegation (J): Police Officer Giancarlo Proietti did not obtain medical treatment for § 87(2)(b)

It is undisputed that § 87(2)(b) requested to go to the hospital at multiple points during the incident, and that he did not receive medical treatment under police custody.

According to § 87(2)(b) CCRB statement (Board Review 1), after PO Proietti removed him from the vehicle, he laid on the ground, and told PO Proietti that he was sickly and had trouble breathing. PO Proietti did not reply. § 87(2)(b) was transported to the 63rd Precinct station house by PO Perez and PO Caravana. When he arrived at the station house, § 87(2)(b) asked PO Proietti for medical attention again, PO Proietti told § 87(2)(b) that if he went to the hospital, his paperwork would get lost, and his release would be delayed. § 87(2)(b) told § 87(2)(b) to not go to the hospital if he wanted to be release swiftly. PO Proietti did not obtain medical attention for § 87(2)(b) was issued a DAT and released. § 87(2)(b) § 87(2)(b) went to § 87(2)(b) Hospital § 87(2)(b) for medical treatment. § 87(2)(b) did not know what his injuries were § 87(2)(a) – PHL 18(6) The investigation did not obtain § 87(2)(b) medical records.

§ 87(2)(b) (Board Review 2) stated that § 87(2)(b) requested medical attention when he arrived at the station house. PO Proietti told § 87(2)(b) that his release may be prolonged if he went to the hospital. § 87(2)(b) did not ask to go to the hospital after and decided that he will go seek medical attention on his own upon release to not possibly prolong his time under police custody.

PO Proietti (Board Review 8) stated that § 87(2)(b) requested for an ambulance when he was on the ground attempting to apply handcuffs on § 87(2)(b) who was also on the gorund, § 87(2)(b) did not tell PO Proietti why he wanted an ambulance or if he had any physical injuries. PO Proietti stated that the incident location was a known violent area. PO Proietti did not call an ambulance for § 87(2)(b) because a crowd was growing at the location. PO Proietti determined that the crowd was hostile because they were yelling, however, PO Proietti did not know what they were yelling about. PO Proietti wanted to take § 87(2)(b) back to the station house, where the environment was “nice and controlled.” After he placed § 87(2)(b) in handcuffs, PO Cioffi picked up § 87(2)(b) off the ground. At the 63rd Precinct station house, § 87(2)(b) informed PO Proietti that he suffered back injuries in the past. § 87(2)(b) was processed and lodged with § 87(2)(b) At this time, PO Proietti approached § 87(2)(b) and informed him that he will receive a Desk Appearance Ticket and be released. PO Proietti asked § 87(2)(b) if he wanted to go to the hospital. § 87(2)(b) looked at § 87(2)(b) who told him that he should take the DAT and go home. § 87(2)(b) agreed and did not request to go to the hospital after. PO Proietti did not tell § 87(2)(b) that his paperwork will be lost if he went to the hospital. § 87(2)(b) did not make any complaints or request to go to the hospital for the remainder of his stay.

PO Cioffi (Board Review 10) recalled one bystander watching the incident. PO Cioffi did not observe any injuries on § 87(2)(b) At the station house. PO Proietti informed him that after § 87(2)(b) Sr and § 87(2)(b) were lodged in the holding cell area, PO Proietti told § 87(2)(b) that he was eligible for a Desk Appearance Ticket. PO Proietti asked § 87(2)(b) if he wanted to go to the hospital. § 87(2)(b) declined. PO Cioffi did not know why PO Proietti offered to take § 87(2)(b) to the hospital.

According to PO Proietti's BWC video footage (Board Review 4) at internal timestamp at internal timestamp 01:47:35, § 87(2)(b) repeatedly groans in pain. PO Proietti instructs § 87(2)(b) to tell PO Proietti that he can't move. At internal timestamp 01:47:46, § 87(2)(b) tells PO Proietti that he can't move, again. At internal timestamp, 01:48:01, § 87(2)(b) tells PO Proietti that he is hurting his arm. At internal timestamp 01:48:11, § 87(2)(b) groans in pain. At internal timestamp, 01:48:36, § 87(2)(b) groans in pain three times and tells PO Proietti to call him an ambulance, twice.

According to the NYPD Patrol Guide Procedure 210-04 (Board Review 23), officers are to request an ambulance and remove a prisoner to hospital directly from place of arrest when a prisoner in custody requires medical/psychiatric treatment.

PO Proietti admitted that he did not take § 87(2)(b) to the hospital when he first asked for medical attention because he intended to take § 87(2)(b) to the 63rd station house, first a place he considered "nice and controlled". § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended that **Allegation J** be closed as *substantiated*.

Allegation (K): Police Officer Jonathon Perez did not obtain medical treatment for § 87(2)(b).

Allegation (L): Police Officer Anthony Caravana did not obtain medical treatment for § 87(2)(b).

Allegation (M): Lieutenant Mariana Zakhary did not obtain medical treatment for § 87(2)(b).

§ 87(2)(b) did not allege that he requested medical attention from PO Perez, PO Caravana and LT Zakhary.

PO Perez (Board Review 9) stated that he and PO Caravana transported § 87(2)(b) to the 63rd Precinct station house in their patrol vehicle. PO Perez stated that § 87(2)(b) did not have any injuries that required immediate medical attention because he was "bleeding normally" and able to verbally communicate. § 87(2)(b) complained of an injury to his arm or shoulder and requested for medical attention., but PO Perez was unable to recall exactly when this statement was made. PO Perez was presented with his BWC. In the video, § 87(2)(b) groans from pain and repeatedly asked PO Perez and PO Caravana to take him to the hospital. PO Perez did not call for an ambulance at this time because § 87(2)(b) did not appear to have life-threatening injuries that would require immediate medical attention. PO Perez's goal at the time was to transport § 87(2)(b) to the stationhouse as quickly as possible so that he could be processed. PO Perez stated that, once at the station house, it would be the desk officer's responsibility to alert medical services for § 87(2)(b)

PO Caravana (Board Review 10) stated that he did not recall if § 87(2)(b) informed him of any preexisting medical conditions he may have had. § 87(2)(b) did not appear to have any injuries that would have required immediate medical attention. During transport, § 87(2)(b) requested to go to the hospital. PO Caravana did not recall why § 87(2)(b) requested for medical attention. At the station house, PO Caravana lodged § 87(2)(b) into the holding cells. PO Caravana stated that if a civilian in police custody requests medical attention, either at the scene or during transport to the station house, officers are to examine the individual and determine whether immediate

medical attention is necessary. If immediate medical attention is deemed unnecessary, the individual would be transported to the stationhouse prior to receiving medical attention. PO Caravana was presented with his BWC video footage. In the video, § 87(2)(b) says he is bleeding and requested to go to the hospital. PO Caravana stated that he did not observe blood on § 87(2)(b). § 87(2)(b) is shown on the BWC asking PO Perez and PO Caravana to go to the hospital multiple times. Each time, PO Caravana maintained that § 87(2)(b) did not require immediate medical attention because he did not believe it was necessary.

LT Zakhary (Board Review 11) stated that she did not recall if she called an ambulance to the station house. Lt Zakhary was presented PO Perez's BWC video footage. In the video § 87(2)(b) request to go to the hospital she stated that she did not call an ambulance for § 87(2)(b) because she stated that it was the responsibility of the supervisor at the scene of the arrest to alert medical attention.

Photographs submitted by § 87(2)(b) (Board Review 21) showed various bruising and scabbing on his hand and fingers.

According to PO Perez's BWC video footage (Board Review 4), internal timestamp 01:50:06, § 87(2)(b) tells PO Perez and PO Caravana that his arm is bleeding, asks the officers to call an ambulance because wants to go to the hospital. § 87(2)(b) tells PO Perez and PO Caravana that he is on disability. At internal timestamp, 01:52:15, § 87(2)(b) yells to PO Perez that he wants to go to the hospital. § 87(2)(b) is escorted into PO Perez and PO Caravana's patrol vehicle. At internal timestamp 01:53:35, § 87(2)(b) complains of pain in his bones and that he wants to go to the hospital. § 87(2)(b) groans loudly. At 01:54:17, § 87(2)(b) complains of pain in his bones. At internal timestamp 01:55:53, § 87(2)(b) tells PO Perez and PO Caravana that he wants to go to the hospital, and that he wants to see his mental health doctor. At internal timestamp 02:01:38, § 87(2)(b) tells LT Zakhary that he wants to go to the hospital, and that he has mental health need and is disabled at the front desk. LT Zakhary does not reply to § 87(2)(b) request for medical attention. At internal timestamp 02:0:50, § 87(2)(b) tells PO Caravana that he wants to go to the hospital at the holding cell area. PO Caravana tells § 87(2)(b) that he will take care of that.

The Command Log for the 63rd Precinct (Board Review 22) on February 28, 2020, did not record any entries regarding EMS being called to the station house.

According to the NYPD Patrol Guide Procedure 210-04 (Board Review 23), officers are to request an ambulance and remove a prisoner to hospital directly from place of arrest when a prisoner in custody requires medical/psychiatric treatment.

PO Perez and PO Caravan both admitted that § 87(2)(b) requested to go to the hospital during his transport in their vehicle to the 63rd Precinct station house. PO Caravana and PO Perez did not call an ambulance for § 87(2)(b) despite multiple requests and his complaint of pain. PO Caravana did not alert medical attention for § 87(2)(b) because he did not observe any visible injuries on him, § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PO Zakhary's understanding that it was the arrest supervisor's responsibility to request medical attention for § 87(2)(b) despite § 87(2)(b) asking her to go to the hospital § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation K, L and M** be closed as ***substantiated***.

Allegation (N): Police Officer Giancarlo Proietti searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (O): Police Officer Michael Cioffi searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) vehicle was transported to the station house and searched.

§ 87(2)(b) (Board Review 1) and § 87(2)(b) (Board Review 2) did not allege that § 87(2)(b) vehicle was searched by officers.

PO Cioffi (Board Review 7) and PO Proietti (Board Review 8) conducted an inventory search of the vehicle. The officers searched the center console, trunk, armrest. PO Cioffi did not recall if any items were seized from the inside of the vehicle.

According to PO Cioffi's BWC video footage (Board Review 4), at internal timestamp 02:22:34, he searched the front passenger seat of § 87(2)(b) vehicle outside of the 63rd Precinct station house. And PO Proietti searches the driver seat., at internal timestamp 02:24:13, PO Cioffi searches the dashboard compartment. At internal timestamp 02:23:32, PO Proietti looks under the hood of the vehicle. At timestamp 02:25:37, PO Cioffi searches the back passenger seat with PO Proietti. At internal timestamp 02:27:16, PO Cioffi and PO Proietti searches the trunk of the vehicle.

According to NYPD Patrol Guide Procedure 218-13 (Board Review 15), officers must thoroughly search the interior of any vehicle that comes into police custody. Officers are permitted to search the interior of the vehicle thoroughly. a. This search should include any area that may contain valuables including, but not limited to: (1) Glove compartment (2) Console (3) Map pockets in or on doors and rear or side of seats (4) Areas under the seats and in and around the seat stuffing and springs (5) Under the floor mats (6) Under and behind the dashboard (7) Inside the ashtrays (8) In the air vents where accessible (9) Under the hood (10) Trunk. Procedure 218-13 also require officers to remove all valuables and invoice all the items removed on a separate Property Clerk Invoice.

In accordance with the NYPD Patrol Guide, PO Proietti and PO Cioffi were required to conduct a thorough inventory search of § 87(2)(b) vehicle once it was in police custody. PO Proietti and PO Cioffi are then required to invoice all valuables within. The investigation did not receive any Property Clerk Invoice or vouchers associated with the vehicle inventory search. § 87(2)(g)

It is therefore recommended that **Allegation N and O** be closed as ***unsubstantiated***.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 16).
- § 87(2)(b)

